

File No.: EXP202307998

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 31, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant states that the respondent has installed a camera in a wall lamp of their residence, with the camera oriented towards common areas of the Community of Owners where the residence is located, without prior permission from the aforementioned Community and without the camera being properly signposted with the required informative signs of a video surveillance area.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

This communication was attempted on two occasions, June 12, 2023, and July 10, 2023, but both documents were returned as the respondent was not at home. On both occasions, the postal service left a notice of the delivery without the respondent collecting it from the office, so it was returned to the sender.

THIRD: On August 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On August 6, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged violations of Articles 5.1 c) and 13 of the GDPR classified in Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), in such a way that it was attempted via postal service on October 2, 2024, at 19:26 and on October 3, 2024, at 10:35, finding the respondent absent from the residence on both occasions, leaving a notice, without the respondent collecting it from the office, so it was returned to the sender, which is why the notification was made by publication in the BOE on October 28, 2024, in accordance with Article 44 of the LPACAP.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present proceeding,

PROVEN FACTS

FIRST: The respondent has installed a camera in a wall lamp of their residence, with the camera oriented towards common areas of the Community of Owners where the residence is located, without prior permission from the aforementioned Community and without the camera being properly signposted with the required informative signs of a video surveillance area.

LEGAL GROUNDS

I

Competence

According to the provisions established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD),

the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states: "The proceedings processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

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III

Presumed infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful. Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, whether public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities. Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR. In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment. This information duty will be considered fulfilled by placing an information device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. In the event that the monitored space has several access points, the distinguishing mark of the monitored area must be provided at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both

at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of minimization

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The data protection regulations regarding video surveillance imply that images of public spaces cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Bodies.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public space to ensure security purposes. That is to say, cameras and video cameras installed for security purposes may not capture images of the public space unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities. Under no circumstances will the use of surveillance practices beyond the area subject to installation be permitted, and in particular, they must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to comply with current regulations, must meet the following requirements:

- 1.- Individuals or legal entities, public or private, may establish a video surveillance system with the purpose of preserving the safety of persons and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Article 39 of the GDPR.
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled as previously indicated.
- 4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.
- 5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.
- 6.- The responsible party must maintain a record of activities of the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.
- 7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.
- 8.- When a security breach occurs that affects the treatments of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood as the destruction, loss, or accidental

or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the responsible party regarding the personal data processing they carry out, and, where applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

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Administrative Infraction

In accordance with the available evidence, it is considered that:

The installation by the respondent of a surveillance camera on a wall lamp in their home, with the camera oriented towards common areas of the Community of Property Owners, constitutes an infraction attributable to the respondent, in accordance with Article 5.1.c of the GDPR, which states that personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

Furthermore, the absence of the mandatory informative signs indicating the monitored area implies a failure to comply with the respondent's obligation to inform the data subject about the collection of personal data, as provided in Article 13 of the GDPR.

The described facts constitute an infraction classified under Article 83.5 of the GDPR, which states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount: (...)

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

“.

b) the rights of data subjects under Articles 12 to 22; “.

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Infractions considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infractions that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following:

a) “The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.”

VI

Proposal for Warning
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Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)”

For its part, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall take place. The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of the violated articles.

VII

Adoption of Measures

Having confirmed the infraction, it is agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame...”.

Specifically, this Agency requires the responsible party to, within one month:

- Provide proof of having removed the camera or video camera system from the current location or, in the event that the camera is maintained, provide proof that it has been reoriented, in such a way that the viewing of the images...

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The camera must not capture public spaces or, if applicable, only capture the minimum portion of public areas necessary to ensure the safety of individuals, property, and facilities.

- Provide evidence, in the event that the camera is maintained, that an informational device has been placed in the monitored areas (at a minimum, it must identify the existence of processing, the identity of the responsible party, and the possibility of exercising the rights provided in said provisions), placing this device in a sufficiently visible location, both in open and closed spaces.

- Provide evidence, in the event that the camera is maintained, that the information referred to in Article 13 of the GDPR is available to the affected parties.

It is warned that failure to adopt the measures imposed by this body in the resolution of this procedure

may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for the infringements of Articles 5.1 c) and 13 of the GDPR classified in Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable:

- Provide evidence of having removed the camera or video camera system from the current location or, if the camera is maintained, provide evidence that it has been reoriented so that the viewing of the images does not capture public spaces or, if applicable, only captures the minimum portion of public areas necessary to ensure the safety of individuals, property, and facilities.
- Provide evidence, in the event that the camera is maintained, that an informational device has been placed in the monitored areas (at a minimum, it must identify the existence of processing, the identity of the responsible party, and the possibility of exercising the rights provided in said provisions), placing this device in a sufficiently visible location, both in open and closed spaces.
- Provide evidence, in the event that the camera is maintained, that the information referred to in Article 13 of the GDPR is available to the affected parties.

THIRD: NOTIFY this resolution to B.B.B..

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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